Bennett
LITIGATION AND COMMERCIAL LAW

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11 October 2022

Mr Nathan Halls
Associate Director
National Disability Insurance Agency
**By Email: Nathan.Halls2@ndis.gov.au**

Dear Mr Halls

**Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd**

1 As you know we act for Forward Focused Group Pty and Hybrid Hive Pty Ltd. We write in respect of your conduct concerning our clients. Your conduct (at the very least) requires explanation.

2 We are instructed that you have contacted multiple participants who receive services from our clients with the intention of transferring those clients to another service provider, specifically Sukhi Tear of Diversitas WA. These actions have been taken with no explanation provided to either of our clients. It is inappropriate to divert participants away from our clients without any explanation or notification or opportunity to be heard.

3 Further, our client has instructed us one of their participants received a telephone call from you during which you informed the participant that:

3.1 there is a "gag order" in place and that she is not to speak to Forward Focused Group or their staff about this matter. We are unaware of any Court Orders requiring our clients' participants not to communicate with our clients. Please provide us with a copy of any such Orders or statutory power so that we may advise our clients further. If there is no such order, please explain your conduct;

3.2 Forward Focused Group are fraudulent. We are unaware of any outcome of any investigation or determination that our clients have been fraudulent nor notification as to this effect; and

3.3 the NDIA are shutting our clients down. This self-evidently requires explanation.

4 We are further instructed that you have issued a direction to Assist Plan Managers to refuse payment of any invoices submitted for payment by our clients. On 4 October 2022 we wrote to the NDIS (as advised by Karen Ruth of Assist Plan Managers) and yourself requesting an explanation for this decision and instruction to Assist Plan Managers. On 6 October 2022 we received an email from Barbara Lundgren of the NDIA stating that "The Agency has not directed Assist Plan Managers to cease all payments to Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd.". However, Assist Plan Managers maintain that the direction not to pay our clients' invoices was given by you.

5 On 4 October 2022, I telephoned you on the mobile number provided in your email signature. There was no answer and I left a detailed message for you to return my call. To date, you have not telephoned me back or communicated with my office in any other way.

6 Please provide me with a full explanation of your conduct as a matter of priority.

Yours faithfully

Martin Bennett

cc:
Ms Barbara Lundgren
**By Email: Barbie.Lundgren@ndis.gov.au**